

ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE
(JUDICIAL DEPARTMENT)

W.P. No. 14119/2026

Muhammad Anwar. **Versus** District Judge, etc.

S.No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge and that of parties or counsel, where necessary.
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14.04.2026	Mr. Iftikhar Ahmad Chohan, Advocate for petitioner. Mr. Muhammad Bilal Gondal, Advocate for respondent No.3.
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Decision of the Family Judge and Appellate court are questioned on single ground – whether decree for maintenance could be allowed beyond the period of six years, which is claimed as outer limit of period of limitation provided in terms of Article 120 of the Limitation Act 1908. Facts of the case at hand are that suit for dissolution of marriage, maintenance and return of dowry articles was instituted on 20.09.2024 -[marriage solemnized on 20.02.2003]. Family Judge dissolved marriage on 19.12.2024 and later granted decree for maintenance, including past maintenance, later accruing from January 2012 till her period of Iddat. Appellate court affirmed the decree of maintenance. Hence, this petition.

2. On last date of hearing learned counsel for petitioner was asked to examine the effect of recent judgment of Hon’ble Supreme Court of Pakistan, which is “Muhammad Aslam Chattha v. Shehnaz Akhtar Zahoor Ahmed & another” (2025 SCP 426).

3. Learned counsel for petitioner states that period of limitation defines how far back the court can go while allowing claim of past maintenance. Adds that each

month's maintenance give rise to fresh cause of action and limitation runs separately for default of every month. Adds that if default of maintenance is construed as a recurring default and same continues for decades; does it imply that maintenance could be claimed for entire defaulted period without constraints of limitation. Submits that arrears of maintenance cannot go beyond six years, which is the mandate of Article 120 of the Limitation Act 1908. Adds that decision of four-member bench of Hon'ble Supreme Court of Pakistan, reported as "Muhammad Nawaz Vs. Mst. Khurshid Begum and 3 others" (PLD 1972 S.C 302), would have preference over the recent decision of Apex Court, which was handed down by a three-member Bench.

4. Heard. Peculiarity of facts of case at hand neutralized alleged objection of limitation, which objection is unwarranted. Petitioner, while filing written statement, had sought a decree of restitution of conjugal rights in response to the suit for dissolution / maintenance, wherein he had acknowledged, in writing, that wife remained unmaintained since 2012 – it was alleged that wife maintained voluntary separation and petitioner was ready and willing to accept her condition(s).

This position has to be understood in the context of a hypothetical situation. If husband files suit for restitution of conjugal rights against wife, who was not maintained for last 12 years. Whether is it permissible for the court to direct payment of maintenance allowance for last 12 years,

while entertaining claim for restitution of conjugal rights. Does limitation bars the court. Now add another fact. And if wife, in said case, while filing written statement, asked for decree of Khula. And court grants a decree of Khula and rejects claim of restitution of conjugal rights. Whether court is entitled to grant maintenance for last 12 years, as past maintenance while rejecting claim of restitution of conjugal rights. By all means, it is permissible for the court to decree payment of maintenance for 12 years or more as the case may be, and dissolve the marriage. In such cases, notwithstanding distinct claims though raised in distinct proceedings; claims are treated as non-mutually exclusive and deemed as converged / consolidated by legal fiction and in such peculiar circumstances, bar of limitation is not available to reject claim of past maintenance, notwithstanding claim goes beyond the outer limit of 6 years. Hence, decisions of the Apex Court are distinguishable on facts and same had no application qua this case.

5. There is another aspect of seeking decree of restitution of conjugal rights, in context of limitation. Where husband / petitioner claims decree for restitution of conjugal rights, same is admitting subsistence of marriage; that wife is living separately and implicitly admits that she is entitled to maintenance – who cannot approbate and reprobate; one on hand asked for her return and on the other deny maintenance. This position attracts doctrine of

estoppel and petitioner is barred from pleading limitation as a defence. Evidently, claim of restitution of conjugal rights has cascading consequences and it would neutralize the question / defence of limitation, where such situation arose. In aforesaid circumstances objection of limitation qua past maintenance is not sustainable.

6. In view of the above, I find no illegality or error of law in the judgments passed, whereby past maintenance for 12 years was allowed upon decree of dissolution of marriage, and as consequence whereof claim of restitution of conjugal rights was dismissed.

7. Petition is, hereby, dismissed.

(Asim Hafeez)
Judge

Approved for reporting.

Judge